

DIPLOMATIC WORKING DOCUMENT — MODULAR ANNEX

ANNEX HM

Humanitarian Exchange Protocol

ICRC-Supervised Simultaneous Transfer with No Re-Arrest Guarantee

Modular · Self-Contained · Incorporable by Reference

MOU Pertaining to PEACE (v7.0) · June 2026

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Preamble

The Parties agree to a good-faith humanitarian exchange of detained persons as a confidence-building measure separate from the nuclear, maritime, and economic provisions of this MOU. The International Committee of the Red Cross (ICRC) serves as the neutral facilitator and certifying body for all transfers. Each Party retains the right to verify the identity and voluntariness of each detainee before release.

The framework architecture treats this exchange as a humanitarian gesture, not a political concession. The exchange proceeds on its own track, with its own verification mechanisms, independent of the nuclear custody, maritime transit, or economic relief timelines. A failure in one track does not affect the others. A success in this track builds the trust that supports success in the others.

The following principles govern the interpretation of this Annex:

- **Humanitarian primacy:** The welfare, dignity, and safety of the detained persons take precedence over political or strategic considerations at every stage of the exchange process.
- **ICRC centrality:** The ICRC exercises independent professional judgment at all times. Neither Party directs, overrides, or interferes with ICRC assessments, certifications, or operational decisions.
- **Simultaneity as symmetry:** The simultaneous release architecture ensures that neither Party releases its detainees before receiving confirmation that the other Party's detainees are also being released. This symmetry eliminates the risk of unilateral non-performance.
- **Legal separation:** The humanitarian exchange operates under a separate legal track from the MOU's compliance architecture. The "no re-arrest" clause creates a protected legal status for exchanged persons for 60 days, regardless of the MOU's overall compliance status.

Annex HM addresses one of the most politically sensitive and emotionally charged dimensions of the U.S.-Iran relationship: the human beings held in each other's custody. By placing the ICRC at the center, creating airtight simultaneity protections, and guaranteeing a 60-day no re-arrest window, this Annex transforms a potential bargaining chip into a structured humanitarian procedure. The architecture says: these are people, not leverage.

Article 1 — Definitions

For the purposes of this Annex, the following terms have the meanings set out below. Terms not defined here have the meanings given in MOU Article 1.6.

Term	Meaning
Exchange Date	Day 15 of the MOU, unless the Parties agree in writing to an earlier or later date. In no event does the Exchange Date occur later than Day 30 of the MOU. The Joint Secretariat notifies both Parties and the ICRC of the confirmed Exchange Date no later than Day 5.
ICRC	The International Committee of the Red Cross, headquartered in Geneva, Switzerland, or its designated operational delegate for this exchange.
Detainee	Any person held in the custody of either Party who appears on the confidential roster contained in Annex HM-A. The term includes persons held pending trial, persons convicted and serving sentences, and persons held under administrative detention authority.
Simultaneous release	The transfer of all detainees from both sides occurs within a single 60-minute window. Neither Party releases its detainees before receiving ICRC confirmation that the other Party's detainees are also being released. The 60-minute window starts at the moment ICRC issues the "ready to release" confirmation to both Parties.
No re-arrest period	The 60-day period following the Exchange Date, during which the framework architecture prohibits either Party from re-detaining any exchanged person on the same or substantially similar charges that existed prior to the exchange.
Annex HM-A	The confidential classified annex containing the complete detainee roster, deposited with the Joint Secretariat and the ICRC. Annex HM-A is not attached to this document and is distributed only through the channels specified in Article 2.2.
Transfer point	The physical location designated for the exchange, located in the territory of a third country agreed by both Parties under Article 6. The transfer point operates as neutral territory for the duration of the exchange.
Medical Fitness Certificate	The written certification issued by an ICRC medical officer confirming that a detainee is physically and psychologically fit for transfer. The certificate includes any medical accommodations required during transit.
Exchange Completion Certificate	The final written certification issued by the ICRC confirming that all detainees from both sides have been transferred, are safe, and are accounted for. This certificate constitutes presumptive evidence that the exchange is complete.

Article 2 — Confidential Detainee Roster (Annex HM-A)

2.1 Roster Content

Annex HM-A is a classified document deposited simultaneously with the Joint Secretariat (Muscat) and the ICRC (Geneva). It lists each detainee scheduled for exchange with the following information for each entry:

Field	Description
Name	Full legal name of the detainee as it appears on their passport or national identity document. Aliases or operational names are listed separately if relevant to identity verification.
Nationality	Citizenship or permanent residency status at the time of detention.
Charges / Legal Basis for Detention	The general category of charges (e.g., "sanctions violations," "espionage-related activities," "political protest-related detention," "immigration violation"). Detailed legal codes or classified operational details are redacted from the version provided to the ICRC; the Joint Secretariat retains the unredacted version under seal.
Custodial Location	The facility or location where the detainee is held. For security reasons, the ICRC receives this information only 48 hours before the Exchange Date.
Medical Status (ICRC pre-assessment)	The ICRC's preliminary medical assessment of the detainee's fitness for transfer. This field is completed by the ICRC during its pre-exchange access under Article 3.1 and is not filled by the detaining Party.

Each entry on the roster requires mutual written agreement by both Parties. Either Party objects to a specific entry by submitting a written objection to the Joint Secretariat within 72 hours of receiving the draft roster. The objection specifies the factual or legal basis for exclusion. The Parties resolve objections through direct negotiation or, if unresolved, through PCC facilitation.

2.2 Distribution and Custody

Annex HM-A is distributed through the following secure channels:

- **ICRC copy:** One complete copy goes to the ICRC's Geneva headquarters for operational planning and pre-exchange access scheduling. The ICRC uses this copy solely for the purposes of this exchange and destroys all physical and electronic copies 90 days after the Exchange Date, retaining only the Exchange Completion Certificate and anonymized statistical data.
- **Joint Secretariat copy:** One sealed copy goes to the Joint Secretariat in Muscat. The Joint Secretariat opens this copy only upon mutual written request of both Parties, or by order of a PCA arbitral panel

in connection with a dispute under this Annex. The seal integrity is verified by Oman as the host nation.

- **Party copies:** Each Party retains one copy for its internal legal and operational use. Neither Party shares its copy with any third state, including guarantors, without the other Party's written consent.
- **Exclusion from public disclosure:** The framework architecture excludes public disclosure of Annex HM-A. Neither Party releases any portion of the roster to media, congressional/parliamentary bodies, or judicial proceedings without the other Party's written consent, except as required by domestic law in which case the Party gives 48 hours' advance notice to the other Party and the ICRC.

2.3 Updates and Amendments

If a detainee's legal status changes — for example, charges are dropped, a conviction is overturned, or a sentence is completed — the detaining Party notifies the ICRC and the Joint Secretariat within 24 hours of the status change. The roster is amended by mutual written agreement.

Amendments to the roster are permissible up to 72 hours before the Exchange Date. After the 72-hour deadline, the roster is frozen. No additions, removals, or modifications occur except by mutual written agreement in exceptional circumstances (for example, a detainee's death or a medical unfitness determination by the ICRC).

Post-Exchange Date amendments to the roster do not affect the "no re-arrest" clause of Article 5. The no re-arrest protection applies to all persons exchanged on the Exchange Date, regardless of subsequent changes to the roster's accuracy or completeness.

Annex HM-A is the most sensitive document in this exchange. It contains real names, real charges, and real locations. Its confidentiality is not a procedural nicety — it is a safety measure for the detainees, their families, and the operational security of the exchange itself. The framework architecture builds multiple layers of protection around this document: ICRC operational custody, Joint Secretariat sealed storage, mutual consent for disclosure, and automatic destruction 90 days post-exchange.

Article 3 — ICRC Role and Access

3.1 Pre-Exchange Access (Starting Day 12)

The ICRC receives private, unmonitored access to all detainees listed in Annex HM-A no later than 72 hours before the Exchange Date. This access period typically runs from Day 12 to Day 14 of the MOU, though the Parties adjust the schedule by mutual written agreement if the Exchange Date shifts.

The ICRC's pre-exchange access includes the following elements:

- **Medical examination:** An ICRC doctor conducts a full physical and psychological examination of each detainee. The examination assesses fitness for travel, identifies any acute medical conditions requiring treatment or accommodation, and documents the detainee's baseline health status.
- **Identity verification:** The ICRC confirms each detainee's identity against the Annex HM-A roster using government-issued identification documents, biometric data where available, and photographic verification.
- **Voluntary consent interview:** The ICRC conducts a private, unmonitored interview with each detainee to confirm that the detainee consents voluntarily to the transfer. The ICRC assesses whether the detainee's consent is free from coercion, duress, or undue influence. If the ICRC determines that a detainee's consent is not voluntary, the ICRC reports this finding confidentially to the PCC, and the detainee is removed from the exchange roster by mutual agreement.
- **Legal status briefing:** The ICRC informs each detainee of their legal status post-exchange, including the duration and scope of the no re-arrest protection under Article 5, any conditions of release, and the right to legal representation in the receiving jurisdiction.

Each Party provides the ICRC with the following documents for each detainee: (a) complete medical records for the period of detention; (b) the custody location and any transfer history within the detention system; (c) any restrictions on movement, communication, or contact that have been imposed during detention; (d) a copy of the legal basis for detention (charges, warrant, or administrative order).

3.2 Medical Assessment

The ICRC issues a Medical Fitness Certificate for each detainee at least 48 hours before the Exchange Date. The Certificate states one of the following:

- **Fit for transfer:** The detainee is physically and psychologically fit for transfer under standard conditions.
- **Fit with accommodations:** The detainee is fit for transfer subject to specific medical accommodations (for example, stretcher transport, medication during transit, access to a medical escort). The ICRC specifies the required accommodations.
- **Not fit for transfer:** The detainee has an acute medical condition that makes transfer unsafe (for example, active infectious disease, unstable cardiovascular condition, severe psychological crisis).

The detainee is transferred as soon as the ICRC certifies medical fitness, and the exchange of all other detainees proceeds on schedule.

If medical unfitness affects a substantial portion of either side's roster — defined as more than 25% of the detainees listed for that Party — the Parties consult with the ICRC on whether to postpone the Exchange Date. Postponement requires mutual written agreement and does not affect the no re-arrest timeline, which runs from the actual Exchange Date.

3.3 On-Site Monitoring on Exchange Day

ICRC observers are physically present at each transfer location throughout the entire exchange operation. The ICRC's on-site functions include:

- **Transfer point verification:** The ICRC confirms that the transfer point meets the safety and neutrality standards agreed under Article 6.
- **Transport boarding:** The ICRC confirms that each detainee boards the designated transport (aircraft, vehicle, or vessel) voluntarily and without coercion. The ICRC physically escorts each detainee from the handover point to the transport and remains with the detainee until the transport departs.
- **Simultaneity confirmation:** The ICRC maintains real-time communication with both transfer points and confirms that releases on both sides are occurring within the 60-minute window.
- **Verification of Simultaneous Release:** At the T+30 minute mark, the ICRC issues a written Verification of Simultaneous Release confirming that both Parties have released their detainees within the required window.
- **Final Exchange Certification:** Within 24 hours of the exchange operation, the ICRC issues the Final Exchange Certification confirming that all detainees from both sides have been transferred, are safe, and are accounted for. This Certification constitutes presumptive evidence that the exchange is complete and is not rebutted except by clear and convincing evidence of a material omission or error.

The ICRC's role is not ceremonial — it is operational, medical, legal, and protective. The ICRC determines medical fitness. The ICRC confirms voluntary consent. The ICRC witnesses every boarding. The ICRC certifies completion. Neither Party controls the ICRC's findings. This independence is the architecture's guarantee that the exchange is genuine, not performative. When the ICRC certifies completion, the world knows that human beings moved from custody to freedom under professional supervision.

Article 4 — Simultaneous Release Choreography

4.1 Exchange Timeline

The exchange operation on the Exchange Date follows the precise timeline below. All times are expressed in Coordinated Universal Time (UTC). The Joint Secretariat serves as the time coordination hub, broadcasting time-checks to all participants at T-24 hours, T-2 hours, T-30 minutes, T-0, and T+60 minutes.

Time (UTC)	Action	Responsible Actor
T-72 hours	ICRC completes all Medical Fitness Certificates and transmits them to both Parties and the Joint Secretariat.	ICRC
T-48 hours	Both Parties confirm to the ICRC and the PCC that all logistical arrangements are complete: transport aircraft/vehicles are secured, receiving country clearances are granted, medical escorts are assigned, and communication protocols are tested.	U.S. / Iran
T-24 hours	Joint Secretariat issues final time-check and confirms Exchange Date is proceeding. Either Party postpones the exchange by written notice to the Joint Secretariat and the ICRC, but only for force majeure or ICRC recommendation based on medical unfitness of more than 25% of either roster.	Joint Secretariat / Parties
T-12 hours	Detainees receive final welfare check by ICRC medical officer. ICRC confirms all detainees remain fit for transfer.	ICRC
T-2 hours	Detainees are moved from custodial facilities to designated transfer points. ICRC observers accompany each movement. Both Parties notify the Joint Secretariat when transport is en route.	U.S. / Iran, with ICRC
T-30 minutes	All transports arrive at transfer points. ICRC observers verify transport safety and neutrality. Joint Secretariat broadcasts T-30 confirmation to all participants.	ICRC / Joint Secretariat
T-0 (Exchange Hour)	ICRC issues the "ready to release" confirmation to both Parties simultaneously. This confirmation certifies that both sides are positioned, transports are ready, and all detainees are present and fit for transfer. The 60-minute simultaneity window opens.	ICRC
T+0 to T+30 min	Release of detainees from both sides proceeds. Each detainee crosses into neutral territory under ICRC escort. The ICRC maintains real-time voice and data communication between both transfer points to confirm that releases are occurring on both sides.	U.S. / Iran, ICRC

T+30 min	ICRC issues the Verification of Simultaneous Release. If either side has not released at least 50% of its detainees by this point, the ICRC issues a delay warning and extends the window by 30 minutes.	ICRC
T+60 min	The simultaneity window closes. All remaining detainees are transferred to receiving custody or allowed to travel freely under pre-arranged conditions. ICRC concludes on-site presence at transfer points.	ICRC / Receiving State
T+6 hours	ICRC confirms that all detainees have arrived at their final destinations (receiving country, home country, or designated safe location) and issues a preliminary arrival confirmation.	ICRC
T+24 hours	ICRC issues the Final Exchange Completion Certificate after confirming all detainees are safe and accounted for. The Certificate is transmitted to both Parties, the Joint Secretariat, and the PCC.	ICRC

4.2 Simultaneity Mechanism

The simultaneous release architecture operates through the following technical and procedural mechanisms:

- **Locked release:** Neither Party releases its detainees before receiving the ICRC's "ready to release" confirmation at T-0. The confirmation is a single synchronized signal transmitted simultaneously to both Parties. The architecture prevents either Party from releasing early to create a *fait accompli*.
- **Real-time linkage:** The ICRC maintains continuous real-time communication between both transfer points. If one side suspends its release, the ICRC immediately notifies the other side, which pauses its own release pending clarification. This linkage operates as an automatic procedural function, not requiring convenor approval.
- **Progress thresholds:** By T+30 minutes, each side releases at least 50% of its detainees. If either side falls below this threshold, the ICRC issues a delay warning and the simultaneity window extends to T+90 minutes. If either side releases fewer than 50% of its detainees by T+90 minutes, the fallback procedure of Article 4.3 activates.
- **Neutral territory crossing:** Each detainee physically crosses into neutral territory — the territory of the third-country host under Article 6 — before boarding transport to the final destination. This crossing point serves as the legal moment of release: custody transfers from the detaining Party to the ICRC at the crossing point, and from the ICRC to the receiving Party at the destination.

4.3 Fallback for Non-Release

If one Party fails to release its detainees within the 60-minute simultaneity window (or the extended 90-minute window if applicable), the following fallback procedure activates:

- **Suspension right:** The Party that has released its detainees suspends any further releases upon ICRC notification that the other side is not proceeding. Releases already completed remain valid; the ICRC

maintains custody of those detainees in neutral territory.

- **PCC emergency session:** The PCC convenes an emergency session within 12 hours of the suspension. The session determines whether the non-releasing Party is acting in good faith (for example, responding to a genuine logistical obstacle) or in bad faith (deliberately withholding release after the other Party has completed its releases).
- **Good-faith finding:** If the PCC determines good faith, the Parties agree on a revised release timeline, not to exceed 72 hours from the original Exchange Date. The ICRC maintains custody of all exchanged detainees in neutral territory during the delay.
- **Bad-faith finding:** If the PCC determines bad faith, the non-releasing Party faces a Tier 2 material disruption under Annex T. The PCC orders the immediate completion of the exchange within 24 hours. If the non-releasing Party still does not comply, the PCC escalates to Tier 3 and the matter proceeds to binding arbitration under Annex O.
- **Return of completed releases:** Under no circumstances does a bad-faith finding by one Party undo releases that the other Party has already completed. Released detainees remain in the custody of the ICRC or the receiving Party. The architecture excludes any clawback mechanism for completed humanitarian transfers.

The simultaneity mechanism is the heart of this Annex. It is what makes the exchange trustworthy. Neither Party releases first. Neither Party releases alone. The ICRC holds the key that unlocks both sides simultaneously. If one side fails to turn the key, the other side stops. The PCC then determines why. This architecture transforms a leap of faith into a synchronized procedure.

Article 5 — No Re-Arrest Clause

5.1 Duration and Scope

For a period of 60 days following the Exchange Date, the framework architecture prohibits either Party from re-arresting, re-detaining, or initiating new legal proceedings against any exchanged person on the basis of:

- The same charges or substantially similar charges that existed prior to the exchange, as recorded in Annex HM-A; or
- Acts or omissions that occurred before the Exchange Date and were known to the detaining Party at the time of the exchange.

The 60-day period starts at 00:00 UTC on the day after the Exchange Date and ends at 23:59 UTC on the 60th day. The Joint Secretariat tracks the period and issues a 7-day warning to both Parties before expiration.

The framework architecture treats the no re-arrest clause as a standalone legal protection. The clause remains in force regardless of the MOU's overall compliance status, regardless of any Tier 2 or Tier 3 step-back, and regardless of whether either Party invokes the exit ramp of Article 8.5. The humanitarian track operates independently from the nuclear, maritime, and economic tracks.

5.2 Exceptions

The no re-arrest clause does not apply if the exchanged person:

- **Commits a new offense:** The person commits a criminal offense after the Exchange Date. The offense is genuinely post-exchange conduct, not a pretextual re-characterization of pre-exchange activity. The PCC reviews any dispute over whether conduct is genuinely new.
- **Material misrepresentation:** A court of competent jurisdiction finds that the person provided materially false information about their identity or criminal history that, if known at the time of exchange, would have caused the other Party to withhold consent to the exchange. The finding requires a judicial order, not merely an administrative determination.
- **Voluntary return and independent justification:** The person voluntarily returns to the territory of the detaining Party and engages in activity that independently justifies arrest under the ordinary law of that country, unrelated to the charges that formed the basis of the original detention.
- **Extradition request from a third state:** A third state submits a valid extradition request based on conduct unrelated to the original detention charges. The extradition proceeds under the receiving country's ordinary extradition procedures, subject to the protections of its domestic law and applicable international treaties.

5.3 Remedy for Violation

If a Party re-arrests an exchanged person in violation of this Article, the other Party exercises the following remedies:

- **Expedited PCC dispute:** The aggrieved Party files an expedited dispute with the PCC, which convenes within 48 hours of the filing. The ICRC provides a factual report on the re-arrest within 24 hours of the PCC's request.
- **Release order:** If the PCC confirms a violation, the violating Party releases the re-arrested person within 24 hours of the PCC's determination and pays the other Party's arbitration costs for the expedited proceeding.
- **Tier 2 escalation:** A confirmed violation constitutes a Tier 2 material disruption under Annex T. The PCC applies the Annex T step-back procedures, which include a 15-day cure period during which the violating Party releases the person and provides written assurances against further violation.
- **Second violation:** A second violation within the same 60-day period constitutes an automatic Tier 3 material disruption. The PCC applies the full Annex T Tier 3 procedures, including structural consequence assessment and potential arbitration referral.
- **No effect on other detainees:** A violation against one exchanged person does not affect the no re-arrest status of any other exchanged person. Each person's protection is individual and independent.

The 60-day no re-arrest window is the architecture's guarantee that the exchange is real, not a revolving door. It gives each exchanged person two months of protected legal status — enough time to return home, consult legal counsel, and establish a stable situation before any pre-exchange legal exposure potentially resumes. The four exceptions are narrow and specific: new crimes, material fraud, voluntary return with independent cause, and third-state extradition. Everything else is off-limits for 60 days.

Article 6 — Third-Country Role

The framework architecture designates Oman, Switzerland, or Qatar as the physical transfer location for the exchange. The third country serves as neutral territory for the duration of the exchange operation and provides the following:

- **Safe passage:** The host country grants safe passage through its airspace, territorial waters, and land territory for all transport associated with the exchange. This includes overflight clearance, landing permissions, port access, and ground transit rights.
- **Temporary entry permissions:** The host country grants temporary entry permissions to all detainees, ICRC personnel, and accompanying officials for the duration of the exchange operation. These permissions do not constitute visa status, residency rights, or refugee status.
- **Security provision:** The host country's security forces provide perimeter security at transfer points. Internal security within the transfer area is managed by the ICRC with the consent of both Parties.
- **Medical facilities:** The host country makes available medical facilities for detainees requiring emergency or ongoing care during the exchange operation. The ICRC coordinates with the host country's health authorities.
- **Logistical support:** The host country provides ground transport, aircraft parking, fuel, and communication infrastructure as required by the exchange operation.

The ICRC coordinates all arrangements with the host country's authorities. Neither Party negotiates directly with the host country on exchange logistics; all communication flows through the ICRC to preserve neutrality.

If the designated host country becomes unavailable due to force majeure or political change, the ICRC proposes an alternative host country from the list above. The alternative host activates upon mutual written agreement of both Parties. If no agreement is reached within 48 hours, the Exchange Date postpones until a host country is confirmed.

Article 7 — Post-Exchange Monitoring

The ICRC conducts a single follow-up visit with each exchanged detainee within 30 days of the Exchange Date. The follow-up visit serves the following purposes:

- **Welfare verification:** The ICRC confirms that the detainee is safe, has access to medical care if needed, and has been able to reunite with family or establish stable accommodation.
- **No re-arrest verification:** The ICRC confirms that the detainee has not been re-arrested, re-detained, or subjected to new legal proceedings in violation of Article 5.
- **Needs assessment:** The ICRC identifies any humanitarian needs — medical, psychological, legal, or social — that require attention and refers the detainee to appropriate services.
- **Voluntary interview:** The ICRC offers the detainee an opportunity to provide feedback on the exchange process. This interview is voluntary and confidential.

The ICRC reports any violation of Article 5 to the PCC. The report is confidential unless both Parties agree to disclosure. The ICRC does not publicly identify individual detainees in any report. All post-exchange monitoring data is anonymized and aggregated for statistical purposes.

The ICRC destroys all individually identifiable monitoring records 90 days after the no re-arrest period expires. The Joint Secretariat retains only the Exchange Completion Certificate and the anonymized statistical summary.

Article 8 — Relationship to Other Annexes

The table below specifies the operative relationship between this Annex and each relevant provision of the MOU architecture.

Annex / Provision	Relationship
Annex T (Step-Back Protocol)	A violation of the no re-arrest clause constitutes a Tier 2 material disruption. The PCC applies Annex T procedures, including the 15-day cure period and potential escalation to Tier 3 for a second violation within the 60-day window.
Annex Mo (JMC)	The JMC receives ICRC certification reports for informational purposes but does not override ICRC factual findings. The JMC integrates exchange completion status into its Daily Compliance Bulletin but does not independently assess the exchange's compliance status.
Annex D (Deadlock Mechanism)	A deadlock in the humanitarian exchange track does not trigger the Phase II deadlock procedures. The humanitarian track operates independently. However, if the deadlock results from a Party's refusal to proceed with the exchange after both Parties previously agreed, the PCC treats this as a compliance issue under Annex T.
Annex IC (Institutional Continuity)	If a leadership transition occurs during the no re-arrest period, the incoming administration inherits the 60-day protection. The ICRC's post-exchange monitoring continues regardless of government changes.
MOU Article 8.5 (Exit Ramp)	The humanitarian exchange is separate from the exit ramp. A Party's withdrawal from the MOU under Article 8.5 does not void completed exchanges or terminate the no re-arrest clause for detainees already released. The no re-arrest protection survives MOU withdrawal for its full 60-day term.
MOU Article 8.6 (Force Majeure)	Force majeure affecting the exchange — for example, a natural disaster preventing transport — postpones the Exchange Date but does not cancel the exchange. The ICRC determines whether an event constitutes force majeure for exchange purposes.

Article 9 — Incorporation by Reference

This Annex is incorporable into any existing or future agreement through the following adoption sentence:

"The Parties adopt Annex HM (Humanitarian Exchange Protocol) as an operative provision of this Agreement. The actual detainee roster is contained in confidential Annex HM-A. The ICRC serves as the sole certifying authority for the exchange. The 'no re-arrest' clause applies for 60 days following the Exchange Date, regardless of the MOU's overall compliance status or any Party's withdrawal under Article 8.5."

No amendment of the parent MOU is required for this Annex to enter into force. This Annex enters into force upon signature by both Parties or provisional application by exchange of diplomatic notes.

The entry-into-force mechanisms are:

- **Signature:** Physical or electronic signature by the authorized representative of each Party, consistent with MOU Article 12.
- **Provisional application:** Exchange of diplomatic notes confirming that each Party applies this Annex provisionally pending signature. Provisional application carries the same binding effect as signature for the duration of the provisional period.
- **Automatic integration:** If this Annex is adopted by the incorporation sentence above, it enters into force simultaneously with the agreement that adopts it.

The incorporation sentence is deliberately designed to protect the humanitarian track from political turbulence. Even if the nuclear track stalls, even if the maritime track encounters problems, even if one Party walks away from the MOU entirely — the exchanged detainees retain their 60-day protection. The architecture says: humanity first, politics second. This is not idealism; it is structural insurance.

Signature Block

In witness whereof, the undersigned, being duly authorized by their respective governments, have signed this Annex HM: Humanitarian Exchange Protocol.

Done at _____, this ____ day of _____, 2026, in duplicate in the English language.

For the United States of America	For the Islamic Republic of Iran
Name: _____	Name: _____
Title: _____	Title: _____
Signature: _____	Signature: _____
Date: _____	Date: _____

Witnessed by the International Committee of the Red Cross:

Name: _____ Title: _____

Signature: _____ Date: _____

ICRC Headquarters, Geneva, Switzerland